Mahip Singh Saini vs State Nct Of Delhi on 24 January, 2011

Author: Shiv Narayan Dhingra

Bench: Shiv Narayan Dhingra

* IN THE HIGH COURT OF DELHI AT NEW DELHI

Date of Reserve: 10th January,

Date of Order: January 24, 2011

+ Bail Appln. No. 17/2011

% 24.01.201

Mahip Singh Saini ...Petitioner

Versus

State NCT of Delhi ...Respondents

Counsels:
Ms. Sobha and Ms. Radhima Garg for petitioner.
Mr. Sunil Sharma, APP for State/respondent.

JUSTICE SHIV NARAYAN DHINGRA

1. Whether reporters of local papers may be allowed to see the judgment?

2. To be referred to the reporter or not?

3. Whether judgment should be reported in Digest?

ORDER

1. This second bail application under Section 439 Cr.P.C has been made by the petitioner/ accused for grant of regular bail.

2. The petitioner/accused was a practicing advocate and arrested in a case of grabbing properties by forgery and cheating. It was found that in the neighbourhood of accused one Ved Prakash used to live. The accused misused his capacity as a lawyer and identified Ved Prakash as Charanjit Singh as well as Rajinder in different courts at Delhi and U.P. Forged documents were prepared in order to grab property of complainant Naresh Kumar. Naresh Kumar's sister was the owner of the property bearing number 46, Ishwar Colony, Delhi admeasuring 206.7 sq. yards being a member of DMC Cooperative Staff House Building Society. Naresh Kumar was made a nominee by his sister. His sister was unmarried and died on 2nd May, 1989. In order to grab this property, some forged documents were prepared by the accused /applicant in connivance with other accused persons. These forged documents included agreement to Bail Appln.17 of 2011 Page 1 Of 3 sell, general power

of attorney, will, possession letter, receipt dated 24th April, 1989 and 25th October 1989. The addresses given on these documents were either fake or wrong and none of the persons in whose favour agreement to sell, power of attorney were allegedly executed by the deceased resided at the addresses. The applicant M.S. Saini used the address of B-169, Janta Colony, Raghubir Nagar, Delhi a plot lying vacant and belonging to his wife Smt. Nirdosh Saini as the address of fictitious person. A forged business agreement containing an arbitration clause dated 18th December 2000 was prepared and an arbitration award dated 4th January 2001 was procured from the arbitrator whereby the property of the complainant was assigned to accused no.3 and 4 (before the trial court) i.e. accused Satbir and present applicant. On the basis of this forged award, an execution was filed and again a forged address of the respondent was given in execution petition (of the award) and the property was grabbed. Ved Prakash Saini @ Rajinder Kumar also filed a civil suit for declaration and the signatures of complainant on the AD Card were forged and thereafter a conduit was produced in the court of Mr. Vikas Dhall by the present applicant to obtain an ex parte decree dated 29 th March, 2003.

3. The entire chain of events shows that applicant was the kingpin of the entire conspiracy to grab the properties. The evidence collected also shows that the addresses of Rajinder Kumar @ Charanjit Singh, given on other documents relating to other properties, that of U.P. were false. The investigating officer found that one Manoj Nagpal son of Shri B.L. Nagpal, r/o A-41, Jaishiv Apartments, C-2, West Enclave, Pitam Pura, Delhi had purchased the property bearing number B-169, Janta Colony, Raghubir Nagar from Amrik Singh and sold the same to Rajinder (a fictitious person) for a consideration of Rs.95,000/- and Rajinder further sold it to Smt. Nirdosh Saini wife of present applicant for consideration of Rs.4.45,000/-. Out of two photographs pasted on the irrevocable power of attorney dated 24th February 2002, one was of Smt. Nirdosh Saini wife of present applicant and another was of Rajinder Kumar son of Lottan Singh. Present Bail Appln.17 of 2011 Page 2 Of 3 applicant M.S. Saini had attested these documents as witness, thus he attested a document executed by fictitious persons. The address of alleged Charanjit Singh as given in vakalat is 287A, Purdilpur, Gorakhpur. The investigation revealed that this address was a non-existent address. In order to find out as to who were Charanjit Singh and Rajinder Kumar and if they were different persons, a thorough investigation was made at different address but all were found fake. Ultimately it was found that it was Ved Prakash Saini, neighbour of present applicant M.S. Saini, who had impersonated as Rajinder Kumar and Charanjit Singh. Ved Prakash Saini was arrested and he disclosed the entire conspiracy hatched by the present applicant in order to grab properties by preparation of forged documents and impersonation. The present applicant/ accused, knowing fully well that Ved Prakash Saini was not Rajinder neither he was Charanjit Singh identified him at different places as a different man. M.S. Saini produced Ved Prakash Saini as Rajinder and Charanjit Singh in different courts and played fraud with the courts and obtained ex parte decrees and misused his office. He appeared not only in Delhi but also in U.P. as a counsel for Rajinder and Charanjit Singh by producing Ved Prakash Saini as Charanjit Singh and Rajinder. M.S. Saini had been principal beneficiary of these forgeries as the property was transferred in the name of his wife. His wife is also an accused but was kept in Column No.4. The present applicant even did not disclose the identity of Manoj Kumar Nagpal son of Bishamber Lal Nagpal, r/o M-43, Raghubir Nagar, New Delhi as this person is also not traceable.

4. From the entire chargesheet and testimony of witnesses recorded so far, it seems that accused/ applicant was running a network for grabbing the properties. He was using his position that of an advocate in commission of crime. I find that he is not entitled for bail. The application for bail is hereby dismissed.

January 24, 2011 SHIV NARAYAN DHINGRA, J
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